Agenda Item No. 12.

Staff Report

Date: April 4, 2014

To: Mayor P. Beach Kuhl and Council Members

From: Elise Semonian, Senior Planner

Subject: Dal Bozzo, 3 El Camino Bueno, Design Review and Demolition Permit, File 1948

Recommendation
The Town Council approve the project subject to the findings and conditions in the staff report.

Project Summary

Owner:	Jerry and Jennifer Dal Bozzo
Design Professionals:	Swatt/Miers Architects and Blasen Landscape Architecture
Location:	3 El Camino Bueno
A.P. Number:	72-162-13
Zoning:	R-1:B-A (Single Family Residence, 1-acre minimum lot size)
General Plan:	Very Low Density (.1-1 units per acre)
Flood Zone:	Zone X (outside 1-percent annual chance floodplain)

Request for demolition permit, design review and second unit exceptions. The project includes demolition of the existing structures and construction of a new 3,668 square foot, two-story, residence, detached 484 square foot garage with a 443 square foot second unit above, and a pool. The proposed residence would have a maximum roof ridge of 26' 5" (30 feet permitted). An exception to the maximum floor area ratio is requested for 395 square feet of floor area for the proposed second unit. An exception is also requested to permit the second unit to be in a two story accessory structure that is 19.3' tall (single story/18 feet permitted).

Lot Area	28,000 square feet		
Existing Floor Area Ratio	2,618 sq. ft.	9.4%	
Proposed Floor Area Ratio	4,595 sq. ft.	16.4%	(up to 16.7% permitted with a 2nd unit exception)
Existing Lot Coverage	2,618 sq. ft.	9.4%	
Proposed Lot Coverage	4,199 sq. ft.	15.0%	(15% permitted)

Existing Impervious Surfaces	4,273 sq. ft.	15.3%
Proposed Impervious Surfaces	4,273 sq. ft.	15.2%

Background, project description and discussion

The project site, which is nonconforming in minimum lot size, is developed with a single story residence and detached carport that comply with all development regulations for the R-1:B-A zoning district. The applicants propose to demolish the existing structures and build a new 2-story residence and detached garage/2nd unit structure. The project will comply with all development regulations if exceptions are granted for the proposed second unit, which brings the site 395 feet over maximum permitted floor area and is 19.3' tall where 18 feet is permitted.

The applicants submitted written acknowledgments from neighbors indicating support for the project. The Advisory Design Review Group (ADR) reviewed the design at their March 25, 2014, meeting. No neighbors attended the meeting. ADR had concerns about the project in terms of massing (specifically the second unit above the garage); exterior colors and exterior materials. The ADR was not opposed to the contemporary design, but felt it would be important for the design to complement other homes in the neighborhood. Detailed comments are in draft minutes, attached.

Demolition Permit

In order to approve demolition of the residence the Council must find that the demolition: 1) will not remove a building of historical, architectural, cultural or aesthetic value, and 2.) will not diminish the character or qualities of the site, the neighborhood or the community. Also, the Council must find that the proposed project, "protects the attributes, integrity, historical character and design scale of the neighborhood and preserves the 'small town' qualities and feeling of the town." (R.M.C. Sec. 18.50.060)

County Assessor records indicate the residence was constructed in 1952. Staff has no building permit for the original house. There is nothing about the design that leads staff to believe the residence has historic merit, or that the Town should investigate the issue further. Staff does not believe that demolition of the residence will diminish the character of the neighborhood. The proposed residence appears to be in scale with the site and other development.

Design Review – Materials

The plans reviewed by the ADR included much white stucco siding and light stone materials for the house and second unit. The ADR Group was concerned with the light materials.

The Design Review Guideline for Materials and Colors provides:

1. Buildings should use materials and colors that minimize visual impacts, blend with the existing land forms and vegetative cover, are compatible with structures in the neighborhood and do not attract attention to the structures. Colors and

materials should be compatible with those in the surrounding area. High-quality building materials should be used.

2. Natural materials such as wood and stone are preferred, and manufactured materials such as concrete, stucco or metal should be used in moderation to avoid visual conflicts with the natural setting of the structure.
3. Soft and muted colors in the earthtone and woodtone range are preferred and generally should predominate. (R.M.C. §18.41.100(d))

Since the ADR meeting, the applicants added more wood siding to the buildings. The applicants replaced over 1,100 square feet of white stucco with wood to help soften and warm up the building. The applicants are working to get additional material samples to explore a slightly darker stucco color and rougher facing stone for the exterior walls prior to the Council meeting.

Design Review – Second Unit/Garage Structure

Based on the story poles, staff and ADR were concerned the garage structure will appear very large from the street. The applicants propose a design that complies with the 15% lot coverage limit. The second unit cannot be located at ground level without a lot coverage variance.

The Town's share of the Regional Housing Need is 18 housing units, including 6 "very low income" units. Staff is in support of creating a new second unit at the site and granting exceptions to encourage its creation. In order to grant the floor area exception for the 2nd unit, the owners must agree to only rent the unit to a very low income household at an affordable rent level, or the unit must be occupied by an owners whose household qualifies as a very low income household.

The Council may grant a 2nd unit exception if the design complies with the design review criteria and if they can make a number of findings (See Chapter 18.42 attached), including the following regarding design:

1. The exception will not create a significant adverse impact on any adjacent property, the surrounding neighborhood, or the general public good.
2. The lot and the arrangement of existing and proposed physical improvements on the lot can accommodate the exception without adversely affecting the views, privacy, or access to light and air of neighboring properties.

The Design Review Guidelines on "Visual Focus" provide:

1. Where visibility exists from roadways and public vantage points, the primary residence should be the most prominent structure on a site. Accessory structures, including but not limited to garages, pool cabanas, accessory dwellings, parking pads, pools and tennis courts, should be sited to minimize their observed presence on the site, taking into consideration runoff impacts from driveways and impervious surfaces. Front yards and street side yards on

corner lots should remain free of structures unless they can be sited where they will not visually detract from the public view of the residence.

2. Accessory structures should generally be single-story units unless a clearly superior design results from a multilevel structure. Accessory structures should generally be small in floor area. The number of accessory structures should be minimized to avoid a feeling of overbuilding a site. Both the number and size of accessory structures may be regulated in order to minimize the overbuilding of existing lots and attain compliance with these criteria.

Regarding the garage/2nd unit, ADR suggested the applicants:

1. Reduce the massing by changing the materials to less stucco and more wood and stone.
2. Significantly increase the landscaping screening around the building, especially along the north and northeast property lines.
3. Move the structure significantly towards the west. This will not encroach on the pool and will help mitigate the problems associated with the massing of the second unit.

The applicants modified the materials on the second unit to increase the wood siding. In addition, significant landscaping is proposed around the building including new 48" box oak trees and evergreen pittosporum hedge plants. The applicants studied moving the building further north-east to the lot, but it increased the amount of driveway, making it a primary focus of the front.

As of the date of this report, no neighbor has expressed any concerns to staff about the project or story poles.

Staff Recommendation

The Council should consider if the impact of the garage and second unit will be significantly minimized with the modified materials and additional screening and landscaping. If so, staff recommends approval of the project subject to the findings in the staff report and the conditions of approval below.

If the Council has concerns with the project, the Council may provide direction to the applicants and continue the application to the May 8 Council meeting.

Fiscal, resource and timeline impacts

If approved, the project would be subject to one-time fees for a building permit, and associated impact fees, which are based in part on the valuation of the work proposed. The improved project site may be reassessed at a higher value by the Marin County Assessor, leading to an increase in the Town's property tax revenues. The Town currently serves the site and there would be no operating or funding impacts associated with the project.

Environmental review (if applicable)

The project may be found categorically exempt from the requirement for the preparation of environmental documents under the California Environmental Quality Act (CEQA) under CEQA Guideline Section 15303, construction of a new single-family residence. No exception set forth in Section 15300.2 of the CEQA Guidelines (including but not limited to Subsection (a), which relates to impacts on environmental resources; (b), which relates to cumulative impacts; Subsection (c), which relates to unusual circumstances; or Subsection (f), which relates to historical resources, applies to the project.

Attachments

1. Minute history
2. Application and Supporting Material
3. Coastland and RVFD memos
4. Town Second Unit Regulations
5. ABAG Regional Housing Need Allocation (2014-2022)

Proposed Conditions of Approval, 3 El Camino Bueno

The following conditions of approval shall be reproduced on the cover sheet of the plans submitted for a building permit:

1. Except as otherwise provided in these conditions, the project shall substantially comply with the plans approved by the Town Council on April 10, 2014. Plans submitted for the building permit shall reflect any modifications required by the Town Council and these conditions.

2. No tree removal is permitted until the building permit is issued. A tree protection plan is required prior to issuance of the building permit.

a. The applicant shall submit written evidence that the project arborist has reviewed the final construction-level drawings, including grading, drainage and utility plans (they should note the dates of the plans reviewed). All tree protection conditions recommended by the project arborist shall be included on those plans to ensure compliance with the conditions.

b. The tree protection plan shall include the following non-intrusion zones. "Non-intrusion zone," means the area of ground surrounding the trunk of a tree within which activities are restricted or prohibited in order to protect the tree. The table below shall serve as a guideline for determining non-intrusion zones. The precise non-intrusion zone shall be determined by the project arborist and shall reflect individual site conditions but shall not be less than the following unless approved in advance by the Town–retained arborist if adequate precautions are taken.

Trunk Diameter (inches)	Protected Distance (radius in feet)
4"	6'
6"	10'
12"	12'
18"	16'
24"	18'
30"	20'
36"	24'
42"	28'
greater than 48"	32'

c. Tree protection fencing should be installed prior to permit issuance to minimize damage to root systems of preserved trees. Tree Protection fencing shall designate the Non Intrusion Zones and will be constructed of at least 4-foot high plastic and attached to metal stakes no less than 12 inches into ground and at 6-foot centers. Signs shall be posted to identify the tree protection fencing.

d. The Town Arborist shall inspect the site, prior to issuance of a building permit, to determine if tree protection fencing has been properly installed.

e. Special foundations, footing, and pavement designs should be employed to minimize root interference when structures must be placed within the tree protection zone.

f. Utilities such as electric, gas, cable TV, telephone, water drains and sewer should be routed outside the tree protection zone.

3. The unit above the garage is approved as a second unit. A separate water meter and electrical meter shall be required for the unit and all requirements of the sewer

district shall be met prior to project final. The unit shall be identified as 3A El Camino Bueno Avenue. The owner shall submit a signed Declaration of Rent Restrictions, to be recorded before or concurrently with, and as a condition of, issuance of the rent-restricted second unit building permit, reflecting the rent restriction. The Town shall provide the form of such Declaration.

4. Impervious surfaces shall be limited as proposed. Pervious surfaces shall not be converted to impervious surfaces, even after project final, without prior Town Council approval.

5. A detailed landscape plan, consistent with the approved plan, shall be submitted for review and approval of the Town planning department. The plan must be approved by the Marin Municipal Water District, if not exempt from their requirements. The Town Council reserves the right to require additional landscape screening for up to three (3) years from project final.

6. No changes from the approved plans, before or after project final, including changes to the materials and material colors, shall be permitted without prior Town approval. Red-lined plans showing any proposed changes shall be submitted to the Town for review and approval prior to any change. The applicant is advised that changes made to the design during construction may delay the completion of the project and will not extend the permitted construction period.

7. A condition of water service by Marin Municipal Water District (MMWD) requires the applicants to comply with all indoor and outdoor requirements of the District Code Title 13 – Water Conservation for water service prior to project final. Indoor plumbing fixtures must meet specific efficiency requirements. Landscape plans shall be submitted, and reviewed to confirm compliance. The Code requires a landscape plan, an irrigation plan, and a grading plan. Any questions regarding District Code Title 13 - Water Conservation should be directed to the Water Conservation Department at (415) 945-1497. Should backflow protection be required, said protection shall be installed as a condition of water service. Questions regarding backflow requirements should be directed to the Backflow Prevention Program Coordinator at (415) 945-1559. Questions regarding this condition of approval should be directed towards Joseph Eischens, Engineering Technician, at (415) 945-1531. A letter or email from MMWD confirming compliance shall be submitted to the building department prior to project final.

8. Applicants shall comply with the requirements of the Ross Valley Sanitary District No. 1 (RVSD) prior to project final. It is the applicants' responsibility to obtain any required permits from Ross Valley Sanitary District and meet all District requirements prior to project final. A letter or email confirming compliance with RVSD shall be submitted to the building department prior to project final.

9. The project shall comply with the Fire Code and comments of the Ross Valley Fire Department (RVFD) memo dated March 20, 2014.

10. Plans submitted for a building permit shall address the March 20, 2014, comments from Coastland Engineering.

11. The project shall comply with the following conditions of the Town of Ross Building Department and Public Works Department:

a. Applicants may be required to return for additional Town Council review, which requires payment of additional application fees, for any roof projections that are not identified

on the plans submitted for Town Council review. Where a roof area is visible from off site, roof projections shall be located to minimize their appearance. Exposed galvanized material is discouraged. All vents and flue pipes shall utilize a finish to blend into adjacent surfaces. If possible, vents may be concealed from view in forms compatible with the structure. Vents for cooking appliances should be located or directed to avoid noise and odor impacts to adjacent sites and shall be located out of required setback areas.

b. The plans submitted for the building permit shall detail the gutter and downspout design and location for review and approval by the Town. Applicants may be required to return for additional Town Council review, which requires payment of additional application fees, for any gutters or downspouts that are not identified on the plans submitted for Town Council review. A specification sheet shall be provided and the proposed color and finish material shall be specified. Downspouts should be located to minimize their appearance from off site locations. Gutters and downspouts should have a finish to blend into adjacent surfaces or underlying trim. Exposed galvanized material is not permitted.

c. Any person engaging in business within the Town of Ross must first obtain a business license from the Town and pay the business license fee. Applicant shall provide the names of the owner, architects, engineers and any other people providing project services within the Town, including names, addresses, e-mail, and phone numbers. All such people shall file for a business license. A final list shall be submitted to the Town prior to project final.

d. The building department may require the applicant to submit a deposit prior to building permit issuance to cover the anticipated cost for any Town consultants, such as the town hydrologist, review of the project. Any additional costs incurred by the Town, including costs to inspect or review the project, shall be paid as incurred and prior to project final.

e. The drainage design shall comply with the Town's stormwater ordinance (Ross Municipal Code Chapter 15.54). The plan shall be designed, at a minimum, to produce no net increase in peak runoff from the site compared to pre-project conditions (no net increase standard).

f. An encroachment permit is required from the Department of Public Works prior to any work within a public right-of-way.

g. The plans submitted for a building permit shall include a detailed construction and traffic management plan for review and approval of the building official, in consultation with the town planner and police chief. The plan shall include as a minimum: tree protection, management of worker vehicle parking, location of portable toilets, areas for material storage, traffic control, method of hauling and haul routes, size of vehicles, and washout areas.

h. The applicant shall submit a schedule that outlines the scheduling of the site development to the building official. The schedule should clearly show completion of all site grading activities prior to the winter storm season and include implementation of an erosion control plan. The construction schedule shall detail how the project will be completed within the construction completion date provided for in the construction completion chapter of the Ross Municipal Code (Chapter 15.50).

i. A copy of the building permit shall be posted at the site and emergency contact information shall be up to date at all times.

j. The Building Official and other Town staff shall have the right to enter the property at all times during construction to review or inspect construction, progress, compliance with the approved plans and applicable codes.

k. Inspections shall not be provided unless the Town-approved building permit plans are available on site.

l. Working Hours are limited to Monday to Friday 8:00 a.m. to 5:00 p.m. Construction is not permitted at any time on Saturday and Sunday or the following holidays: New Year's Day, Martin Luther King Day, President's Day, Memorial Day, Independence Day, Labor Day, Veteran's Day, Thanksgiving Day, and Christmas Day. If the holiday falls on a Sunday, the following Monday shall be considered the holiday. If the holiday falls on a Saturday, the Friday immediately preceding shall be considered the holiday. Exceptions: 1.) Work done solely in the interior of a building or structure which does not create any noise which is audible from the exterior; or 2.) Work actually physically performed solely by the owner of the property, on Saturday between the hours of 10:00 a.m. and 4:00 p.m. and not at any time on Sundays or the holidays listed above. (RMC Sec. 9.20.035 and 9.20.060).

m. Failure to comply in any respect with the conditions or approved plans constitutes grounds for Town staff to immediately stop work related to the noncompliance until the matter is resolved. (Ross Municipal Code Section 18.39.100). The violations may be subject to additional penalties as provided in the Ross Municipal Code and State law. If a stop work order is issued, the Town may retain an independent site monitor at the expense of the property owner prior to allowing any further grading and/or construction activities at the site.

n. Materials shall not be stored in the public right-of-way. The project owners and contractors shall be responsible for maintaining all roadways and right-of-ways free of their construction-related debris. All construction debris, including dirt and mud, shall be cleaned and cleared immediately. All loads carried to and from the site shall be securely covered, and the public right-of-way must be kept free of dirt and debris at all times. Dust control using reclaimed water shall be required as necessary on the site or apply (non-toxic) soil stabilizers on all unpaved access roads, parking areas and staging areas at site. Cover stockpiles of debris, soil, sand or other materials that can be blown by the wind.

o. Applicants shall comply with all requirements of all utilities including, the Marin Municipal Water District, Ross Valley Sanitary District, and PG&E prior to project final. Letters confirming compliance shall be submitted to the building department prior to project final.

p. Address numbers at least 4" tall shall be in place adjacent to the front door. If not clearly visible from the street, additional numbers are required. The address numbers shall be internally illuminated or illuminated by an adjacent light controlled by a photocell and switched only by a breaker so the numbers will remain illuminated all night.

q. The applicant shall work with the Public Works Department to repair any road damage caused by the construction. Applicant is advised that, absent clear video evidence to the contrary, road damage must be repaired to the satisfaction of the Town prior to project final. Damage assessment will be at the sole discretion of the Town, and neighborhood input will be considered in making that assessment.

r. This project is subject to the conditions of the Town of Ross Construction Completion Ordinance (copies available at www.townofross.org). If construction is not completed by the construction completion date provided for in that ordinance, the owner will

be subject to automatic penalties with no further notice. As provided in the Town of Ross Municipal Code Section 15.50.040, construction shall be complete upon the final performance of all construction work, including: exterior repairs and remodeling; total compliance with all conditions of application approval, including required landscaping; and the clearing and cleaning of all construction-related materials and debris from the site. Final inspection and written approval of the applicable work by Town Building, Planning and Fire Department staff shall mark the date of construction completion.

s. The applicant shall submit an erosion control plan with the building permit application for review by the building official/director of public works. The plan shall include a signed statement by the soils engineer that erosion control is in accordance with Marin County Stormwater Pollution Prevention Program (MCSTOPPP) standards. The erosion control plan shall demonstrate protection of disturbed soil from rain and surface runoff and demonstrate sediments controls as a "back-up" system. (Temporary seeding and mulching or straw matting are effective controls.).

t. The construction management plan shall be submitted in time to be incorporated into the job set of plans. The construction management plan shall become a binding document, and failure to adhere to the plan may result in stoppage of the project.

u. All construction materials, debris and equipment shall be stored on site. If that is not physically possible, an encroachment permit shall be obtained from the Department of Public Works prior to placing any construction materials, debris, debris boxes or unlicensed equipment in the right-of-way.

12. The applicants and/or owners shall defend, indemnify, and hold the Town harmless along with the Town Council and Town boards, commissions, agents, officers, employees, and consultants from any claim, action, or proceeding ("action") against the Town, its boards, commissions, agents, officers, employees, and consultants attacking or seeking to set aside, declare void, or annul the approval(s) of the project or alleging any other liability or damages based upon, caused by, or related to the approval of the project. The Town shall promptly notify the applicants and/or owners of any action. The Town, in its sole discretion, may tender the defense of the action to the applicants and/or owners or the Town may defend the action with its attorneys with all attorneys fees and litigation costs incurred by the Town in either case paid for by the applicant and/or owners.

Draft Minutes

Regular Meeting of the
Ross Advisory Design Review Group

Tuesday, March 25, 2014

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1. 7:00 p.m. Commencement

Peter Nelson called the meeting to order at 7:00 p.m. Peter Nelson, Dan Winey, Jim Kemp, Chris Neumann, Mark Kruttschnitt, Mark Fritts and Eric Soifer were present. Elise Semonian, Senior Planner, was present for staff.

2. Open Time for Public Comments.

(Limit 3 minutes per speaker on items not on agenda)

No one wished to comment during public open time.

3. Approval of Minutes for February 25, 2014

Staff indicated the minutes were not yet available.

4. 3 El Camino Bueno

Owner:	Jerry and Jennifer Dal Bozzo
Design Professionals:	Swatt/Miers Architects and Blasen Landscape Architecture
Location:	3 El Camino Bueno
A.P. Number:	72-162-13
Zoning:	R-1:B-A (Single Family Residence, 1-acre minimum lot size)
General Plan:	Very Low Density (.1-1 units per acre)
Flood Zone:	Zone X (outside 1-percent annual chance floodplain)

Review of plans that would require Town Council approval of demolition permit, design review and floor area exception. The project includes demolition of the existing structures and construction of a new 3,668 square foot, two-story, residence, detached 484 square foot garage with a 443 square foot second unit above, and a pool. The design is modern with flat roofs and materials that include horizontal western red cedar siding, off white stucco, and anodized aluminum windows with a clear anodized finish. The proposed residence would have a maximum roof ridge of 26' 5" (30 feet permitted). With an exception to permit 395 square feet of floor area for the proposed second unit, the project would comply with all development regulations. The landscape plan includes removal of 10 significant or protected trees (7 acacias, 1 privet, 1 bay and 1 Japanese maple).

Lot Area	**28,000 square feet**		
Existing Floor Area Ratio	**2,618 sq. ft.**	**9.4%**	
Proposed Floor Area Ratio	**4,595 sq. ft.**	**16.4%**	**(16.7% permitted with 2nd unit exception)**
Existing Lot Coverage	**2,618 sq. ft.**	**9.4%**	

Proposed Lot Coverage	**4,199 sq. ft.**	**15.0% (15% permitted)**
Existing Impervious Surfaces	**4,273 sq. ft.**	**15.3%**
Proposed Impervious Surfaces	**4,273 sq. ft.**	**15.3%**

Jerry and Jennifer Dal Bozzo were present with their architect, Robert Swatt, FAIA, who presented the plans, material samples, and a model of the project. Landscape architects Silvina Blasen and Gary Rasmussen described the project landscaping.

Site Plan and Landscaping

The ADR group was generally complementary of the site plan and had the following comments:

- It was desirable that the residence had been sited towards the southern boundary of the property. This minimized the impact of the structure on the two adjacent neighbors.
- Based upon the location of the story poles, the crown of the 36" valley oak tree is currently interferes with the residence and will have to be trimmed. An arborists needs to confirm that the crown of the tree can be trimmed without damaging the tree. In addition, the tree needs to be protected during construction to minimize damage to the root structure.
- ADR felt that it was important to provide screening from the adjacent neighbors to the west and northwest, particularly if the bamboo is removed. The landscape architect will examine adding additional landscaping.
- There was a detailed discussion about the location of the garage and the importance of screening the structure along the entire property line at the northeast and east portion of the site. ADR is generally concerned with both the side of the structure and the visibility along El Camino Bueno.
- The retaining walls should be constructed of stone, preferably a heavy texture, not the flat finish that was indicated in the limestone sample.
- Planting materials need further review and a more detailed plan provided. Although there were a number of plants indicated it is unclear as to the number and locations of the plantscaping.
- The bamboo along the southern edge of the site will have to be removed, consistent with vegetation management regulations of the Ross Valley Fire Department.
- The design of the gate was not available for review. Landscape architect indicated it would be transparent and horizontal metal materials.

Residence
While the massing of the home is generally acceptable, the primary concerns with the residence are the color, texture, and quality of the exterior materials.

- The majority of the exterior stucco is a Dryvit product, which is typically used for inexpensive commercial buildings. ADR would prefer a natural stucco finish.
- Overall, the group felt that there was too much stucco material and the exterior wall materials should be more varied. ADR suggested adding additional stone or wood cedar walls on the east and west side of the structure to softened the impact of the continuous white walls.
- The color of the stucco finish is not in keeping with the historical sensibility of Ross. Based upon color of the sample material submitted, ADR felt strongly that the sample was too white and needed to be softened.
- The limestone material that was submitted was very flat and hard edged. ADR has a general concern that the material is too commercial and suggested a rough texture stone, perhaps a limestone (or other stone) with a heavy hammered finish. This is typical of what one would find in Ross.
- ADR commented that the deck on the upper level of the residence should be wood; it was unclear as to what material was intended for this area.
- The clear cedar wood siding was a good choice for the residence and consistent with material on other contemporary homes in Ross neighborhoods. ADR generally felt that more wood and stone was preferable to the stucco finish shown on the majority of the house.

Garage/Second Unit
While the garage and residence meets the required setback and FAR regulations, the addition of the second above the garage was generally a concern to ADR due to the massing of the structure and proximity to El Camino Bueno. There is also a general concern that as one enters the site the garage will be the primary focal point given both its size and location.

If a second unit is granted, then ADR would make the following suggestions:

- Reduce the massing by changing the materials on the structure in manner that is consistent with the comments above regarding the house. Less stucco, more wood, and stone would be preferable to the primarily white monolithic structure proposed.
- Significantly increase the landscaping screening around the building, especially along the north and northeast property lines. Given the grade change along El Camino Bueno, the structure will appear very large as one travels to the garage from the north and up the hill from the south.
- Although the location of the garage currently complies with planning codes, as a condition of approval, move the structure significantly towards the west. This will not encroach on the pool and will help mitigate the problems associated with the massing of the second unit.

In summary, the group had concerns about the project in terms of massing (specifically the second unit above the garage); exterior color and exterior materials. The ADR was not opposed

to the contemporary design, but it is especially important that the design complements the scale, texture, and detailing of other homes in the neighborhood.

5. **Review and Discuss Nonconforming Structure Regulations, Proposed Ordinance 653, An Ordinance of the Town of Ross Amending Title 18 "Zoning" of the Ross Municipal Code Chapters 18.12 (Definitions), 18.41 (design review), 18.52 (nonconforming structures) to Establish a Process For The Town Council to Permit Nonconforming Conditions to Remain in Single Family Residential Areas.** The proposed ordinance establishes an exception application process that would permit the Council to allow owners to retain nonconformities, such as nonconforming floor area, when structures are improved or a site is redeveloped.

   - The ADR Group recommended that it apply only to existing residences and not new construction, to encourage residents to improve existing structures. The ADR Group was concerned the exception could move residents in the direction of demolishing existing structures, which would change the character of Ross because the scale and detailing of the houses would not be the same. New structures should comply with current regulations.
   - If the exception is revised so that it does not apply to new houses, "new house" should be defined.
   - ADR did not believe the proposed ordinance would provide any certainty to homeowners or buyers that they could retain nonconformities.
   - The exception ordinance will not result in zoning standards applying equally.
   - The ADR suggested "materially" should be deleted from design review criteria section 18.40.100(m).
   - The ADR believed the example proposed under design review criteria subsection 18.41.100(c)(1) should be clarified or removed.
   - Remove "historic" from proposed Section 18.52.040

6. **Review and Discuss Sign Regulations, Proposed Ordinance 652, An Ordinance of the Town of Ross Amending Title 18 "Zoning" of the Ross Municipal Code Chapters, 18.16, 18.20, 18.24, 18.28 and 18.40 to Permit Signs in the Residential, Local Service Commercial, Community Cultural and Civic Districts.** The Ordinance includes provisions that would permit temporary signs for special events.

   - The ADR Group suggested that any permanent signs go through ADR review.
   - ADR suggested the Town attorney review the limitations on the groups that may post signs to ensure they are legal.
   - "Elevations, details and materials" should be required for the Community Cultural District sign program regulations.
   - The time limits on placing and removing signs may be very restrictive, allow the sign to be placed on the day of the event.
   - The Town should consider eliminating unnecessary signs throughout the Town.

7. Discussion of Lot Coverage Definition

Staff indicated the Town Council directed staff to consider regulations to exclude roof overhangs, eaves and gutters from lot coverage. The ADR Group suggested the following:

- The first 24 inches of roof eaves, overhangs and gutters should not be included in building coverage.
- Roof eaves, overhangs and gutters may project 24 inches into a required yard area.

8. Election of Advisory Design Review Group Chair

Chris Neumann was elected Chair and Eric Soifer was elected vice chair.

9. Adjournment

The meeting was adjourned.

Staff Use Only
Received By: _____
Date: _____
Fees Paid: _____
Date: _____

Town of Ross
Planning Department
Post Office Box 320, Ross, CA 94957
Phone (415) 453-1453, Ext. 121 Fax (415) 453-1950
Web www.townofross.org Email esemonian@townofross.org

VARIANCE/DESIGN REVIEW/DEMOLITION APPLICATION

Parcel Address and Assessor's Parcel No. 3 EL CAMINO BUENO, 072-162-13

Owner(s) of Parcel JERRY & JENNIFER DAL BOZZO

Mailing Address (PO Box in Ross) 420 COLUMBUS AVENUE

City SAN FRANCISCO *State* CA *ZIP* 94133

Day Phone _____ *Evening Phone* _____

Email jdboz@me.com, jendalbozzo@comcast.net

Architect (Or applicant if not owner) SWATT | MIERS ARCHITECTS

Mailing Address 5845 DOYLE STREET, SUITE 104

City EMERYVILLE *State* CA *ZIP* 94608

Phone (510) 985-9779

Email mmuraki@swattmiers.com MIYA MURAKI

Existing and Proposed Conditions (For definitions please refer to attached fact sheet.)

Gross Lot Size 28,000 sq. ft. *Lot Area* _____ sq. ft.

Existing Lot Coverage ≅ 2618 sq. ft. *Existing Floor Area* ≅ 2618 sq. ft.

Existing Lot Coverage ≅9.4 % *Existing Floor Area Ratio* ≅ 9.4 %

Coverage Removed — sq. ft. *Floor Area Removed* — sq. ft.

Coverage Added + 1582 sq. ft. *Floor Area Added* + 1973 sq. ft.

Net Change- Coverage +1582 sq. ft. *Net Change- Floor Area* +1973 sq. ft.

Proposed Lot Coverage 4200 sq. ft. *Proposed Floor Area* 4591 sq. ft.

Proposed Lot Coverage 15.0% *Proposed Floor Area Ratio* 16.4%

Existing Impervious Areas 4273 sq. ft. *Proposed Impervious Areas* 4269 sq. ft.

Existing Impervious Areas 15.3% *Proposed Impervious Areas* 15.2%

Proposed New Retaining Wall Construction 118 ft. (length) 2 ft. (max height)

Proposed Cut 375 cubic yards *Proposed Fill* 50 cubic yards

Written Project Description – *may be attached.*
A complete description of the proposed project, including all requested variances, is required. The description may be reviewed by those who have not had the benefit of meeting with the applicant, therefore, be thorough in the description. For design review applications, please provide a summary of how the project relates to the design review criteria in the Town zoning ordinance (RMC §18.41.100).

We are proposing a new, 2-story home and a detached garage with a secondary unit above at 3 El Camino Bueno. The home and detached garage/secondary unit are contemporary in design with a material palette of Western Red Cedar, light colored stucco, limestone, and clear anodized aluminum framed glazing. The new site improvements would also include a pool, landscape walls and new landscaping - specifically screening along the street and existing fence lines. Currently there is a single-story home on the property, along with a detached storage building and studio.

The proposed design for the main house is a series of stepped forms, that open to an inner courtyard, blurring the boundaries of interior and exterior spaces. The material palette for the buildings are a bit lighter palette because of the contemporary design language, but the counterplay of lighter forms with the green, natural surroundings will bring harmony to the composition.

Town of Ross
Planning Department
P. O. Box 320, Ross, CA 94957
Telephone (415) 453-1453 ext. 121 **Fax (415) 453-1950**
www.townofross.org

NEIGHBOR ACKNOWLEDGEMENT FORM

The Town of Ross requires applicants for development projects to review their plans with abutting neighbors prior to submitting the project to the Town. These plans should be considered **PRELIMINARY ONLY** and there may be modifications made by the applicant or required by the Town during the formal review period, including at the public meeting on the project. The Town will mail a notice of any public meeting regarding the project to the owner of your residence at least ten days prior to the meeting. You are invited to contact the Town Planning Department for more information.

Project Address and Assessor's Parcel No. 3 EL CAMINO BUENO, 072-162-13

Owner(s) of Parcel JERRY & JENNIFER DAL BOZZO

Date of Plans 3/4/14

I am a neighbor of the project site identified above. The applicant has reviewed the project plans with me and I understand the scope of work. I understand that the plans may change during the formal review process.

☑ I approve the plans as proposed

☐ I do not approve the plans as proposed for the following reasons (attach additional material if necessary):

Note: the information on this form will become part of the public record for this project and providing personal information is optional. If you have any concerns with the plans, the Town encourages you to discuss them with the applicant. If the concerns are not resolved, please inform the Planning Department and/or the Town Council. Written comments received by the Planning Department by 5:00 p.m. the Thursday (7 days) prior to the Town Council meeting will be included in the Council agenda packet. Other written comments should be submitted at least 48 hours prior to the Council meeting so the Council has ample time to review the comments.

Neighbor Name(s) Brian & Erica Hunt

Neighbor Signature(s) [signature] Date 3/4/14

Neighbor Address 73 Wrighly Ave

Neighbor Phone Number and Email (415) 377 4090 ~~brian~~

iamBrian@gmail.com

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Project Address and Assessor's Parcel No. 3 El Camino Bueno 072-162-13

Owner(s) of Parcel Del Bozzo

Date of Plans 3-4-14

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Neighbor Name(s) Matt + Aggy Nemer

Neighbor Signature(s) [signature] Date 3-4-14

Neighbor Address 2 El Camino Bueno

Neighbor Phone Number and Email 415 444 6173 dev.innemer@gmail.com

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Project Address and Assessor's Parcel No. 3 EL CAMINO BUENO, 072-162-13

Owner(s) of Parcel JERRY & JENNIFER DAL BOZZO

Date of Plans 3/4/2014

I am a neighbor of the project site identified above. The applicant has reviewed the project plans with me and I understand the scope of work. I understand that the plans may change during the formal review process.

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Neighbor Name(s) ELIZABETH ALLEN

Neighbor Signature(s) Elizabeth Allen Date 3/4/14

Neighbor Address 2 EL CAMINO BUENO

Neighbor Phone Number and Email 415-453-3449

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Project Address and Assessor's Parcel No. 3 EL CAMINO BUENO, 072-162-13

Owner(s) of Parcel JERRY & JENNIFER DAL BOZZO

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Neighbor Name(s) Anneke Chapman

Neighbor Signature(s) [signature] Date 3/4/14

Neighbor Address 4 El Camino Bueno

Neighbor Phone Number and Email 457 8337 annekebruyn@gmail.com

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VEGETATION MANAGEMENT NARRATIVE

PROJECT: 3 EL CAMINO BUENO AVENUE
ROSS, CA

SUBMITTED BY
BLASEN LANDSCAPE ARCHITECTURE
500 Red Hill Ave.
San Anselmo, CA 94960

PLANNING REVIEW SUBMITTAL
April 4, 2014

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INTRODUCTION

The following information is a requirement of the "Ross Valley Fire Department Protection Standard 220 - Vegetation Fuels Management Plan, dated 09/28/2009. The information and requirements contained were developed pursuant to Appendix II A of the 2001 Edition of the Uniform Fire Code, the 2006 Edition of the International Wildland-Urban Interface Code, all as adopted by local ordinance by the City of Ross and Section 4290 and 4291 of the Public Resources Code. Ross Valley Fire Department Fire Prevention Program is in charged by Fire Chief Mark Mills

PROJECT LOCATION

The project is located on 3 El Camino Bueno Avenue, Ross, California in the Zoning R-1:B-A. The property is a single family residence and the lot size is approximately 0.88 acres.

PROJECT SUMMARY

The proposed scope of work includes construction of a new single family residence to replace the existing house. The proposed development plans include new utilities, new landscape elements, auto court, re-landscaping, pool and spa, stepping stones, and crushed stone paths.

PROJECT SITE DESCRIPTION

The site is situated on a Northwestern facing slope facing away from El Camino Bueno Avenue. The 0.88 acre pre-developed site is primarily un-vegetated with invasive and pyrophytic trees at the site periphery. Existing native oaks have been identified and are to remain. Parcels on the two sides have been developed as single family houses. The Eastern portion of the site has moderately-steep grade with flat ground where the proposed house will be located. The driveway gate is being relocated 30' from road edge and will be a sliding gate allowing 16' clear when opened. The driveway has been converted into a drivable permeable paver auto court to better accommodate fire truck and vehicle access.

VEGETATION MANAGEMENT AND FUEL MODIFICATION

The Ross Valley Fire Department (RVFD) Fire Prevention Program indicates the Fuel modification distances, type of vegetation and topographic features are factors in determining adequate green belt and fire fuel modification around structures. The methodology implemented by Fire Prevention Program is for the primary purpose of providing time for fire suppression personnel and equipment to respond and establish effective operational tactics and strategies during an ensuing wild land fire.

Criteria contained within the Ross Valley Fire Protection Standard 220 requires a vegetation management plan (VMP) to show the structures and their defensible space zone, the location and configuration of existing and proposed plants/shrubs/ trees, and a Hazard Assessment Matrix. Following the Fire Department's standard by using the Hazard Assessment Matrix, the Minimum Horizontal Modification Requirement in feet - 30ft x 30ft x 30ft x 50ft. RVFD states the increasing slopes require increased defensible space clearances to be equally effective. For the first 30 feet from the structure the defensible space requirements are the most strict. From 31 feet to 100 feet the RVFD recommends routine maintenance. These recommendations are defined within "Fire safety information landscape tips," as posted on the RVFD website. The RVFD prohibits property-owners from installing plants that are on the fire prone species list (RVFD standard 220 - Table1). The entire defensible space zone shall be planted (if applicable) and irrigated if necessary. The RVFD says by using the FireScape Plant selection list on the "University of the California Cooperative Extension Pyrophytic vs. Fire resistant Plants" brochure or other approved plant list as determined by the the Fire Marshal, in

balance with the selecting use of native plants, best suiting the architectural and planning design. Slope, soil type, and drought resistance should be considered when selecting plant types.

The proposed landscape design spaces shrubs so that no continuity exists between the ground fuels and tree crowns, such that a ground fire will not extend into the tree canopy. Proposed trees are planted such that when mature, their crowns will be separated by at least 10 feet. Add an additional 5 feet for every ten percent increases in slope. Existing trees may be required to be thinned and/or removed depending on their configuration and distance from the structures. Separated individual shrub crowns by at least two times the height or clump shrub into islands of no greater that 18-ft diameter. Separate the islands by a distance of no less than two times the canopy height. Shredded bark, sometimes referred to as " monkey hair" is prohibited from use because its ease of ignition and fire spread characteristics. Trim and maintain vegetation within 10 feet of roadways as for defensible space. Trim trees so they do not hang lower than 15' feet above the roadway.

RVFD DEFENSIBLE SPACE ZONES

Defensible space zone is a minimum 30 feet on a relatively flat slope to over 100 on steeper slopes. The fire department requires plants in this zone be fire-resistant, and shall not contain unacceptable plants that are high in oils and resins. This zone size may be increased due to site slopes and topography.

RVFD notes slope as a consideration when considering minimum defensible space clearance. Increasing slopes require increased defensible space clearances to be equally effective. For example, to be equally effective upslope, cross slope, and down slope clearances, around each structure must be increased as percentage of slope increases when compared to level terrain. Rate of spread, flame length, convective and radiant heat increase in relation to fuel type, aspect, and percentage of slope factors. Increased defensible space zone radiuses in relation to slope are required around structures through fuel modification and reduction. RVFD notes the increased upslope and cross slope defensible space clearance requirements related to increase in slope. Minimum recommended cross slope and upslope increases are shown. Specific terrain may require adjustment (Figure II - Defensible Space Zones):

HAZARD ASSESSMENT MATRIX FOR 3 EL CAMINO BUENO AVE.

Hazard Points		Points
Aspect	NW, N	2
Slope	11-20%	4
Fuel 0-30	Specimen Garden	1
Fuel 31-100	Pyrophytic Hardwoods Chaparral	4
Total Hazard Points:		**11**

Minimum Horizontal Modification Requirement in feet - 30ft x 30ft x 30ft x 50ft

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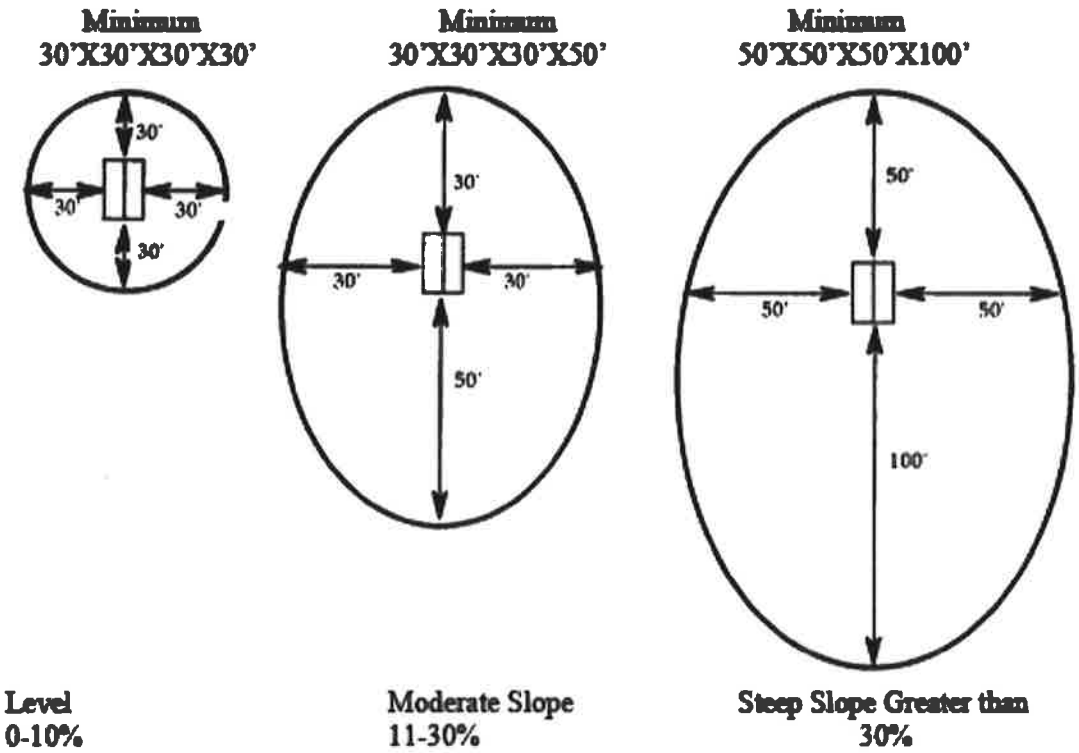
Figure II
Defensible Space Zones



Level
0-10%

Moderate Slope
11-30%

Steep Slope Greater than
30%

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FUEL MANAGEMENT & MAINTENANCE PROCEDURES

RVFD suggested the entire defensible space zone shall be planted (if applicable) and irrigated if necessary. By using the "FireScape Plant selection list on the University of California Cooperative Extension Pyrophytic vs. Fire Resistant Plants" brochure or other approved plant lists as determined by the Fire Chief, select use of native, domestic or combination thereof that best suits the architectural and planning design of the proposed project. Slope, soil type, drought resistance have been considered for selected plant varieties. This project used the RVFD list of prohibited plants to rule out selection of fire prone plant species with an understanding that this list is not all-inclusive and some proposed plants may be deleted from the project by RVFD.

Vegetation Cleaning Process:

The entire site is to undergo a vegetation cleaning, with removal of fire prone species including: Cootamundra Wattle and all dry weeds. This process will also remove the woody plant debris and brush on property, dead wood and dead trees. The Arborist will prune tree branches that overhang proposed roofs, and will raise tree canopies that are within 6 feet from the ground on trees that exceed 18 feet in height.

Proposed Landscape:

The proposed landscape consists of irrigated fire wise plants planted within the 30' zone of the main residence and no fire prone plants 31' and beyond. To enhanced the fire break. The trees and shrubs will be trimmed to maintain 15' above the road for fire apparatus access.

Project proposed Fire-resistant plants including:

Abelia grandiflora
Acer capillipes
Acer shirasawanum 'Palmatifolium'
Camellia japonica cv.
Camellia japonica 'Tinsie'
Camellia sasanqua 'Setsugekka'
Chaenomeles 'Hollandia'
Citrus aurantifolia 'Bearss'
Citrus x meyeri
Correa 'Ivory Bells'
Daphne odora
Dicksonia antarctica
Epimedium x rubrum
Euonymus fotunei
Feijoa sellowiana
Geranium macrorrhizum 'White-Ness'
Geranium 'Nimbus'
Helleborus foetidus
Helleborus orientalis
Hydrangea 'Annabelle'
Hydrangea paniculata 'Limelight'
Laurus nobilis
Leptospermum 'Horizontalis'
Loropetalum chinense
Malus domestica cvs.
Olea europaea
Olea 'Little Ollie'
Osmanthus heterophyllus 'Ilicifolius'
Penstemon 'Firebird'
Photinia x fraseri

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Pittosporum tenuifolium
Pittosporum tenuifolium 'Golf Ball'
Pittosporum tenuifolium 'Marjorie Channon'
Polystichum munitum
Quercus agrifolia
Rosa 'Altissimo'
Sarcococca confusa
Sarcococca hookeriana humilis
Trachelospermum jasminoides
Viburnum opulus
Xylosma congestum

Proposed Fire Safety Landscape Maintenance

Within Defensible zone:

1) Maintain the roof and deck area of any structure on the property free of leaves, needles, or dead vegetative growth.
2) Remove or cut all combustible vegetation such as, dead trees, and all dead vegetation several times in seasons.
3) Keep gutters clear of combustible material.
4) Individual existing non-pyrophytic trees may be allowed to remain, on a case by case basis if proper crown separation can be maintained.
5) Keep all plants in this area irrigated.
6) Remove dead and dying grass, shrubs, and trees on a routine basis.
7) Reduce the density of vegetation and ladder fuels.
8) Cut grasses to 3 inches in height above the ground.
9) Clumps of shrubs must be separated by a distance of no less than two times the height of the shrubs.
10) Individual trees or small clumps of trees of non-pyrophytic species shall have a minimum crown separation of 20 feet.
11) Individual pyrophytic trees shall have a minimum crown separation of twice their height.
12) Remove or chip all cut vegetation.

Entire Site:

1) Trim the limbs that are 3 inches or less in diameter 6 feet from the ground on trees that exceed 18 feet in height.
2) Give individual trees or shrubs, and islands of trees or shrubs 10 feet of separation.
3) Trim and maintain vegetation within 10 feet of roadways for defensible space.
4) Lift tree canopies a minimum of 10 feet off the ground and all branches cleared at a minimum of 10 feet from any structures to reduce ladder fuel potential.

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UNACCEPTABLE PLANT LIST

RVFD list of Fire prone species

Botanical Name	Common Name
Abies spp.	Fir trees
Adenostoma Fasciculatum	Chamise, Greasewood
Adenostoma Sparsifolium	Redshank
Arctostaphylos spp.	Manzanitas
Artemesia californica	Sagebrush
Baccharis spp.	Coyote brush
Bambusa spp.	Bamboo
Cortaderia jubata	Jubata grass
Cortaderia selloana	Pampas grass
Cupressus spp.	Cypress species
Cytisus spp.	Scotch broom
Eucalyputus globulus	Blue gum eucalyptus
Genista monspessulanus	French broom
Juniperus communis	Common juniper
Juniperus flaccida	Weeping juniper
Pennisetum spp.	Fountaingrasses
Picea spp.	Spruces
Pinus attenuata	Knobcone pine
Pinus coulteri	Coulter pine
Pinus muricata	Bishop pine
Pinus radiata	Monterey pine
Pinus sabiniana	Gray pine
Pinus serotina	Pond pine
Pinus sylvestris	Scots pine
Pinus torreyana	Torrey pine
Rosmarinus officinalis	Rosemary
Spartium junceum	Spanish broom
Thuja spp.	Arborivitae
Tsuga spp.	Hemlock
Ulex europea	Gorse

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ACCEPTABLE FIRE-RESISTANT PLANT LIST

Succulents

Botanical Name	Common Name
Aeonium spp.	Aeonium
Agave spp.	Agave
Aloe spp.	Aloe
Carpobrotus spp.	Ice Plant
Cotyledon spp.	
Crassula spp.	Crassula
Delosperma "Alba"	White Trailing Iceplant
Drosanthemum floribunda	Rosea Ice Plant
D. hispidium	Rosea Ice Plant
Dudleya farinosa	Dudleyaor Cliff Lettuce
D. pulverulenta	Dudleya
Lampranthus spp.	Bush Ice Plant
Echeveria spp.	Hen and Chicks
Malephora crocea	Croceum Ice Plant
Malephora luteola	Yellow Trailing Ice Plant
Portulacaria afra "Variegata"	Elephant's Food
Sedum confusum	Stonecrop
Sedum rubrotinctum	Brown Beans (Pork and Beans)
Senecio serpens	

Groundcovers

Botanical Name	Common Name
Achillea tomentosa	Woolly Yarrow
Ajuga reptans	Carpet Bugle
Armeria maritima	Common Thrift
Arctotheca calendula	Silver Spreader
Cerastium tomentosum	Snow-in-Summer
Coprosma tomentosum	Creeping Coprosma
Duchesnea indica	Mock Strawberry
Eounymus fortunei coloratus	Winter Creeper
Festuca rubra	Creeping Red Fescue
Fragaria californica	Wood Strawberry
Fragaria chiloensis	Beach Strawberry
Gazania rigens leucolaena	Trailing Gazania
Iberis sempervirens	Evergreen Candytuft
Liriope gigantea	Giant Turf Lily
Myoporum parvifolium	Myoporum
Osteospermum fruticosum	Trailing African Daisy
Pelargonium peltatum	Ivy Geranium
Phyla nodiflora	Lippia Repens
Potentilla tabernaemontanii	Spring Cinquefoil
Pyracantha "Santa Cruz"	Firethorn
Santolina chamaecyparissus	Lavender Cotton
Santolina virens	Green Lavender Cotton
Thymus praecox arcticus	Creeping Thyme
Trifolium fragiferum	O'Connor's Legume
Verbena peruviana	Perenial Verbena
Vinca spp.	Periwinkle

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University of California Cooperative Extension - Acceptable Fire Resistant Plant List

Perennials

Botanical Name	Common Name
Achillea spp.	Yarrow
Agapanthus spp.	Lily-of-the-Nile
Bergenia spp.	Bergenia
Centaurea cineraria	Dusty Miller
Centranthus ruber	Red Valerian (Jupiter's beard)
Coreopsis spp.	Coreopsis
Dietes bicolor	African Iris
Dietes vegeta	Fortnight LIly
Erigeron karvinskianus	Fleabane (Mexican Daisy)
Erysimum linifolium	Wallflower
Geranium spp.	Geranium
Helichrysum petiolatum	Curry Plant
Hemerocallis hybrids	Daylily
Hesperaloe parviflora	Red Yucca
Heuchera maxima	Island Alum Root
Iris spp.	Iris
Kniphofia uvaria	Red Hot Poker (Torch Lily)
Lantana montevidensis	Lantana
Lavandula spp.	Lavender
Limonium perzil	Sea Lavender
Mimulus spp.	Monkey Flower
Oenothera berlandieri	Mexican Evening Primrose
Penstemon spp.	Beard Tongue
Sisyrinchium spp.	Blue-Eyed Grasses
Stachys byzantina	Lamb's Ears
Strelitzia reginae	Bird of Paradise
Tulbaghia violacea	Society Garlic
Zantedeschia aethiopica	Common Calla
Zauschneria californica	California Fuchsia

Vines

Botanical Name	Common Name
Rosa banksiae	Lady Banks' Rose
Solanum jasminoides	Potato Vine
Tecomaria capensis	Cape Honeysuckle
Trachelospermum jasminoides	Star Jasmine
Wisteria spp.	Wisteria

Shrubs

Botanical Name	Common Name
Brugmansia spp.	Angel's Trumpet
Buddleia spp.	Butterfly Bush
Carpantria californica	Bush Anemone
Coleonema caka "Diosma"	Brush of Heaven
Convolvus cneorum	Bush Morning Glory
Cotoneaster congestus	Likiano
Cotoneaster horizontalis	Rock Cotoneaster
Cotoneaster microphyllus	Rockspray Cotoneaster
Cotoneaster dammeri	Bearberry Cotoneaster

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Shrubs (continued)

Botanical Name	Common Name
Echium spp.	Echium or Priderot
Escallonia spp.	Escallonia
Lavatera assurgentiflora	Malva Rose (Tree Mallow)
Ligustrum japonicum	Japanese Privet
Ligustrum lucidum	Glossy Privet
Ligustrum texanum	Texas Privet
Mahonia repens	Creeping Mahonia
Nerium oleander	Oleander
Nolina spp.	Nolina (related to Yucca)
Pittosporum crassifolium	Dwarf Karo
Pittosporum tobira	Mock Orange
Prunus lyonii	Catalina Cherry
Punica granatum	Pomegranate
Rhapiolepis spp.	India Hawthorn
Rhamnus alaternus	Italian Buckthorn
Rhododendron (Azalea) spp.	Rhododendrons and Azaleas
Rhus integrifolia	Lemonade Berry
Simmondsia chinensis	Jojoba
Trachelospermum jasminoides	Star Jasmine
Yucca spp.	Yucca

Trees

Botanical Name	Common Name
Acer spp.	Maple
Arbutus unedo	Strawberry Tree
Ceratonia siliqua	Carob
Cercis occidentalis	Western Redbud
Cercocarpus betuloides	Mountain Ironwood
Citrus spp.	Citrus
Fagus spp.	Beech
Feijoa sellowiana	Pineapple Guava
Fraxinus spp.	Ash
Gleditsia triacanthos	Honey Locust
Macadamia hybrids	Macadamia Nut
Metrosideros excelsus	New Zealand Christmas Tree
Myoporum spp.	Myoporum
Pistacia chinensis	Chinese Pistache
Pittosporum spp.	Mock Orange
Quercus spp.	Oak
Rhus lancea	African Sumac
Robinia psuedoacacia	Locust, Black
Schinus molle	California Pepper Tree
Schinus terebinthifolius	Brazilian Pepper

BLASEN LANDSCAPE ARCHITECTURE
500 Red Hill Avenue
San Anselmo, CA 94960
t: 415.485.3885
f: 415.485.3877
www.blasengardens.com

University of California Cooperative Extension - Acceptable Fire Resistant Plant List

Moderate fire retarding plants

Botanical Name	Common Name
Ajuga crispa	Giant Ajuga
Aloe aristata	Dwarf Aloe
Aloe breviolia	Shortleaf Aloe
Atriplex semibaccata	Australian Saltbush
Cerastium tomentosum	Snow-in-Summer
Coprosma kirkii	Creeping Coprosma
Gazania rigens leucolaena	Trailing Gazania
Hypericum calycinum	St. Johnswort
Phyla nodiflora	Lippia
Myoporum parvifolium	Myoporum
Osteospermum fruticosum	African Daisy
Teucrium chamaedrys	Prostate Germander
Trifolium fragiferum var O'Connor's	Legume (Strawberry clover)

Low fuel volume native plants

Botanical Name	Common Name
Arctostaphylos hookeri	Monterey Carpet (Manzanita)
Arctostaphylos uva-ursi	Bearberry
Ceanothus gloriosis	Point Reyes Ceanothus
Ceanothus griseus 'Anchor Bay'	
Ceanothus griseus horizontalis	Carmel Creeper
Ceanothus griseus 'Emily Brown'	
Ceanothus griseus 'Ray Hartman'	
Ceanothus maritimus	Maritime Ceanothus
Cistus crispus	Rockrose
Cistus salvifolius	Sageleaf Rockrose
Digitalis spp.	Foxglove
Grindelia stricta venulosa	Coastal Wild Gum
Salvia sonomensis	Creeping Sage
Symphoricarpos mollis	Creeping Snowberry

Low fuel volume native perennials

Botanical Name	Common Name
Achillea millefolium	Yarrow
Aquilegia formosa	Western Columbine
Asarum caudatum	Wild Ginger
Aster chilensis	Wild Aster
Brodiaea laxa	Grass Nut
Dicentra formosa	Western Bleeding Heart
Epipactis gigantea	Stream Orchid
Erigeron glaucus	Beach Aster
Eriogonum spp.	Wild Buckwheat
Eriophyllum confertiforum	Golden Yarrow
Eriophyllum stachaedifolium var. artemisaefolium	Lizardtail
Erysimum capitatum	Fragrant Wallflower
Erysimum concinnum	Foothill Wallflower
Eschscholzia spp.	California Poppy
Grindelia stricta	Coastal Wild Gum
Heuchera micrantha	Coral Bells
Iris douglasiana	Douglas Iris
Iris longipetala	Long-petaled Iris

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Low fuel volume native perennials (continued)

Botanical Name	Common Name
Iris macrosiphon	Ground Iris
Lonicera hispidula	Pink Honeysuckle
Lupinus spp.	Lupine
Mimulus spp.	Monkey Flower
Monardella vellosa	Coyote Mint
Penstemon spp.	Beard Tongue
Polystichum munitum	Sword Fern
Pteridium aquilinum	Bracken Fern
Ranunculus californica	Buttercup
Romneya coulteri	Matilija Poppy
Satureja douglasii	Yerba Buena
Sidalcea malvaeflora	Checkerbloom
Sisyrinchium bellum	Blue-eyed Grass
Sisyrinchium californicum	Yellow-eyed Grass
Solanum xanti	Purple Nightshade
Zigadenus fremontii	Star Lily

Native wildland plants- valued native watershed species

Trees

Botanical Name	Common Name
Acer macrophyllum	Big Leaf Maple
Aesculus californica	Buckeye
Alnus rhombifolia	White Alder
A. rubra	Red Alder
Cercocarpus betuloides	Mtn. Mahogany
Cornus nuttalli	Pacific Dogwood
Corylus cornuta	Hazel
Fraxinus oregona	Oregon Ash
Juglans hindsii	California Black Walnut
Platanus racemosa	Western Sycamore
Populus fremontii	Fremont's Poplar
Quercus spp.	Oaks
Salix spp.	Willow
Sequoia sempervirens	Coast Redwood

Shrubs

Botanical Name	Common Name
Ceanothus (some) spp.	(Some) Wild Lilac
Dendromecon rigida	Bush Poppy
Eriodictyon californicum	Yerba Santa
Galtheria spp.	Salal
Garrya spp.	Silk Tassel
Heteromeles arbutifolia	Toyon, Christmas Berry
Mimulus aurantiacus	Sticky Monkey Flower
Penstemon corymbosus	Thymeleaf Penstemon
Penstemon breviflorus	Bush Beardstongue
Solanum umbelliferum	Nightshade
Rhamnus spp.	Buckthorn
Rhus spp.	Sumac
Ribes sanguineum	Red Flowered Currant

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University of California Cooperative Extension - Acceptable Fire Resistant Plant List

Fire-resistant privacy screen plants:

Botanical Name	Common Name
Acer ginnala	Amur Maple
Arbutus unedo	Strawberry Tree
Berberis spp.	Barberry
Buxus spp.	Boxwood
Camellia spp.	Camellia
Carissa grandiflora	Natal plum
Ceratonia siliqua	Carob
Citrus spp.	Citrus
Cocculus laurifolius	
Cornus stolonifera	Red-Osier Dogwood
C. mas	Cornelian Cherry, Sorbet
Crataegus phaenopyrum	Washington Thorn
Dodonaea viscosa	Hopbush
Elaeagnus angustifolia	Russian Olive
E. pungens	Silverberry
Eriobotrya japonica	Loquat
Escallonia rubra	Escallonia
Eugenia spp.	Eugenia
Euonymus spp.	Euonymus
Hibiscus rosa-sinensis	Tropical Hibiscus
H.syriacus	Rose of Sharon
Ligustrum spp.	Privet
Lonicera spp.	Honeysuckle Bush
Malus spp.	Apple
Myrica californica	Pacific Wax Myrtle
Photinia x fraseri	Photinia
Pittosporum crassifolium	Karo
Pittosporum eugenoides	Lemonwood
Pittosporum tobira	Mock Orange Pittosporum
Pittosporum undulatum	Victorian Box
Plumbago auriculata	Cape Plumbago
Podocarpus gracilior	Fern Pine
Podocarpus macrophyllus	Yew Tree
Prunus caroliniana	Cherry Laurel
Prunus ilicifolia	Hollyleaf Cherry
Prunus laurocerasus	English Laurel
Pyrus kawakamii	Evergreen Pear
Rhamnus spp.	Buckthorn
Rhododendron spp.	Rhododendron/Azalea
Vaccinium spp.	Blueberry
Viburnum tinus	Viburnum
Xylosma congestum	Xylosma

Coastland
Civil Engineering - Construction Management - Building Dept. Services

March 20, 2014

RE: **3 El Camino Bueno**
First submittal - Planning Comments; Number **1948**

We have completed our review of the above referenced property on behalf of the Town of Ross in reference to the Town's adopted building code (2013 California Title 24.)

Please note that our review comments are strictly related to conformance of the Town's Building Code and do not include items related to conditions of approval, planning, zoning, etc. Based on our review, we request that you address the following items:

Non Structural Comments:

Sheet DR5:

1. Please verify that all bathrooms, powder rooms and laundry rooms have Energy Star exhaust fans with humidistat controls and are ducted to the exterior of the house.
2. Please change the CFC 907.2.10 to CRC R314 for smoke detector locations. Smoke detectors are required outside each separate sleeping area in the immediate vicinity of the bedroom and not the center of the hallway or corridor (the CRC is more restrictive). Also please add that where more than one smoke detector is installed within an individual dwelling or sleeping unit, the smoke alarms shall be interconnected is such a manner that the activation of one alarm will active all of the alarms in the individual unit.
3. Please add to the plans that carbon monoxide alarms shall be installed and interconnected where more than one alarm is required per the CRC.
4. Please confirm on the plans that the pool will have an approved safety pool cover that meet the requirements of ASTM Specifications F 1346 or meets one of the other safety requirements per CRC Appendix G of the 2013 CRC. In addition, please verify that there will be a fence around the pool and the pedestrian gates meet the requirements for self-closing and self-latching. The self-latching device is to be located less than 54-inches from the bottom of the gate; the release mechanism and opening shall be located on the pool side of the gate at least 3- inches below the top of the gate and the gate and barriers shall have no opening larger than a ½ inch within 18-inches of the release mechanism per CRC appendix G of the 2013 CRC Section AG105.2.8, .8.1 and 8.2.

Sheet DR6:

5. Please add the same smoke alarms and carbon monoxide alarms requirements to the second unit over the garage.
6. Please show on the plans all the doors and windows that require Safety Glazing (Tempered glass) per CRC. In addition, please state on the plans that the new skylight meets all the requirements for Safety Glazing per the CRC.

Ross Contract Engr
1400 Neotomas Avenue Santa Rosa, CA 95405 707.571.8005 707.571.8037 Fax

Sheet DR7:

7. Please state on the plans that the roof drainage leaders and over flow leaders that are concealed in the walls are required to have a water test before concealing the leaders in the walls and that they have a clean out just before they entry the horizontal storm drain system per the CPC.

Sheet DR8

8. Please verify all the handrails and guardrails heights and openings meet the requirements of the CRC. Also please show the stair rise and run measures and confirm that the handrail for the stair meets all the requirements for stair handrails.
9. Please clearly identify the frameless glass being used at grade level on the west elevation.

Sheet DR9:

10. Please verify that the metal stairs for the second unit about the garage have solid risers.

Sheet DR10:

11. Please show the crawl space vents and venting calculations for the crawl space on the plans.
12. Please indicate if the interior stairs have solid risers for the stairs or if it is a free standing stairway. Also please verify the type of material being used for the handrail - will it be safety glazing, or plastic?

In order to expedite processing of your subsequent submittals of this information, please resubmit (4) sets of revised plans, calculations, and/or specifications to:

Town of Ross
31 Sir Francis Drake Boulevard
Ross, CA 94957
ATTN: Building Department

All responses should be submitted in one overall resubmittal. All resubmittals should contain a cover letter signed by the responsible party. Your response should address each comment and indicate where on the plans or in the calculations the item has been addressed. Please be as specific as possible (e.g., "Sheet S1.1, Detail 2") when referring to where the changes have been addressed. Also, please clearly identify any revisions on the plans with clouding or highlights. These will help in expediting subsequent reviews.

We have endeavored to make our review as complete as possible; however, we reserve the right to make additional comments on subsequent submittals.

If you have questions, **please contact me for any structural comments at (707) 571-8005 or via email at *unsworth@coastlandcivil.com*. For non-structural comments you can contact Thomas Thompson at the telephone number above or via email at *thompson@coastlandcivil.com*.**

Sincerely,

Thomas J. Thompson
Plans Examiner
Senior Building Inspector
Ross Consulting Group
1400 Neotomas Avenue Santa Rosa, CA 95405 707.571.8005 707.571.8037 Fax

Ross Valley Fire Department
777 San Anselmo Ave
San Anselmo, Ca 94960
Ph. 415-258-4686

FIRE DEPARTMENT PLAN REVIEW

PROJECT: 3 El Camino Bueno
ADDRESS: 3 El Camino Bueno
Ross CA,

Date: 03/20/2014
Reviewed by: Rob Bastianon
(415) 258-4673
E-mail: Rbastianon@rossvalleyfire.org

TYPE OF REVIEW: Planning
Bldg. Dept. 3/05/14 Fire Dept. # 14-0091 Review No. 1

Fire Department Standards can be found at: ***www.rossvalleyfire.org***

Applicant*: Ross Planning
Address:

Applicant is responsible for distributing these Plan Review comments to the Design Team.

Occupancy Class: **R-3**	Fire Flow Req: **1500** GPM	Sprinklers Required: **YES**
Type of Construction: V-B	On-site Hyd. Req: **NO**	Fire Alarm Required: **NO**
Bldg Area: **3668sf**:	Turn-Around Req: **NO**	Permits Required: **Sprinkler**
Stories: 2+	Fire Flow Test Required: **NO**	**VMP**
Height: +ft.	Wildland Urban Interface: **YES**	

The project listed above has been reviewed and determined to be:

( ) **APPROVED** (no modifications required)
(X) **COMPLETE AS NOTED** (minor modifications required - review attached comments)
( ) **NOT APPROVED** (revise per attached comments and resubmit)
( ) **INCOMPLETE** (provide additional information per attached comments and resubmit)

NOTE: *Please review the comments and make corrections and/or add notes as required. Changes and/or additions shall be clouded and referenced by date on a legend. Approval of this plan does not approve any omission or deviation from the applicable regulations. Final approval is subject to field inspection. Approved plans shall be on site and available for review at all times.*

ROSSVALLEY FIRE DEPT.
REVIEWED
DATE: 3-20-14

Inspections required:

( ) Access/Water Supply prior to delivery of combustibles
(X) Defensible Space/Vegetation Management Plan
(X) Sprinkler Hydro/Final
(X) Final

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ITEM #	SHEET	COMMENTS	Corr. Made
1	DR1 - Under	Project is located in a high fire severity zone. Project shall comply with CBC Ch 7A.	✔
		Submitter's Response: Correction has been completed. See Sheet ____of ☐Plans ☐Calculations.	
2	DR1 - Under Notes	A fire sprinkler system shall be installed throughout the entire building which complies with the requirements of the National Fire Protection Association (NFPA) 13-D and local standards. A separate deferred permit shall be required for this system. Plans and specifications for the system shall be submitted by an individual or firm licensed to design and /or design-build sprinkler systems. **SHALL BE NOTED ON PLANS**	✔
		Submitter's Response: Correction has been completed. See Sheet ____of ☐Plans ☐Calculations.	
3	L3.0	A Vegetation Management Plan designed in accordance with Ross Valley Fire Standard #220 is required for this project. A separate deferred permit shall be required for this plan. Please submit directly to the Fire Department for review. **SHALL BE NOTED ON PLANS**	✔
		Submitter's Response: Correction has been completed. See Sheet ____of ☐Plans ☐Calculations.	
4	DR5 & DR6, General Note #1	All smoke detectors in the residence shall be provided with AC power and be interconnected for simultaneous alarm. Detectors shall be located in each sleeping room, outside of sleeping rooms centrally located in the corridor and over the center of all stairways with a minimum of one detector per story of the occupied portion of the residence.	✔
		Submitter's Response: Correction has been completed. See Sheet ____of ☐Plans ☐Calculations.	
5	DR5 & DR6, General Notes #1	Carbon monoxide alarms shall be provided in existing dwellings when a permit is required for alterations, repairs, or addition exceeds one thousand dollars. CO alarms shall be located outside of each dwelling unit sleeping are in the immediate vicinity of the bedroom(s) and on every level of a dwelling unit including basements.	✔
		Submitter's Response: Correction has been completed. See Sheet ____of ☐Plans ☐Calculations.	
6	DR3	Address numbers at least 4" tall must be in place adjacent to the front door. If not clearly visible from the street, additional numbers are required. Residential numbers must be internally illuminated (backlit), placed to a light or be reflective numbers. If your project is a new house or substantial remodel, they may only be internally illuminated or illuminated an adjacent light controlled by a photocell and switched only by a breaker so it will remain illuminated all night. If not currently as described, they must be	✔

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FIRE DEPARTMENT PLAN REVIEW

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ADDRESS: 3 El Camino Bueno
Ross CA,

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TYPE OF REVIEW: Planning
Bldg. Dept. 3/05/14 Fire Dept. # 14-0091 Review No. 1

Fire Department Standards can be found at: ***www.rossvalleyfire.org***

ITEM #	SHEET	COMMENTS	Corr. Made
		installed as part of this project.	
		Submitter's Response: Correction has been completed. See Sheet ____ of ☐Plans ☐Calculations.	
7		**Applicant may propose alternate materials or method in accordance with Section 103.3. All approved alternates requests and supporting documentation shall be included in the plans set submitted for final approval.**	
		Submitter's Response: Correction has been completed. See Sheet ____ of ☐Plans ☐Calculations.	

If re-submittal is required, all conditions listed above shall be included in revised drawings.
Fire and life safety systems may require a separate permit. Fire permits may be noted as deferred.

Chapter 18.42

RESIDENTIAL SECOND UNITS

Sections:

18.42.010 Purpose.
18.42.020 Definitions.
18.42.030 Applicability.
18.42.035 Residential Second Unit Permit Required.
18.42.045 Permit Application and Procedures.
18.42.050 Standards for Residential Second Units.
18.42.060 Design Review of Residential Second Units.
18.42.062 Exceptions to Standards for Residential Second Units.
18.42.065 Rent-Restricted Second Units.
18.42.070 Administration and Enforcement.

18.42.010 Purpose. The purpose of this chapter is to establish a procedure for the development of new residential second units that will ensure safe and healthy living environments, and to encourage well-designed legal second units in all residential neighborhoods as an important way to provide workforce and special needs housing. One of the purposes of this chapter is to help achieve the goals and policies of the adopted Housing Element of the Town of Ross General Plan by encouraging a mix of housing types affordable to all economic segments of the community. It is the intent of this chapter to expand the availability of second units in the town. (Ord. 625 (part), 2011; Ord. 578 §8(part), 2003).

18.42.020 Definitions. For the purposes of this chapter the following words have the following definitions:

"Affordable rent level" means that the second unit household's monthly cost of rent, plus the cost of electricity, gas, water and sewer service, and garbage collection (hereinafter "utilities") is 30% or less than the upper limit of the annual gross household income, divided by 12, for a specified income category and household size as last published by the California Department of Housing and Community Development (hereinafter "HCD"). The Town shall determine maximum affordable rent levels for rent-restricted second units following the annual publication of the State Income Limits by HCD. In determining rent levels, the household size for rent-restricted second units shall be: studio, 1 person; one-bedroom, 2 persons; two-bedroom, 3 persons; and, three-bedroom, 4 persons. The cost of utilities for the second unit shall be included in the affordable rent level. For rent-restricted second units where utilities are separately metered and billed, and where the second unit household is responsible for the costs of that household's use of utilities, the maximum rent shall be set at 90% of the affordable rent level.

"Gross household income" means the total monies earned or received by all members of a household age 18 and over, including: wages and all types of compensation, before any payroll deductions; spousal and child support; social security, retirement, disability, insurance, and other types of periodic payments; unemployment compensation and other payments in-lieu of earnings; welfare and other public assistance; interest, dividends and other payments generated from any real or personal property; net business income; and, any other type of payment determined to qualify as income by the U.S. Department of Housing and Urban Development (HUD) and as published in the HUD's Housing Choice Voucher Program Guidebook. The

annual gross household income is calculated by multiplying the monthly amounts earned or received at the time of certification by 12 and adjusting for anticipated payments and changes in amounts over the next 12 months.

"Household" means those persons who collectively occupy a housing unit. A property owner's household shall include any child or dependent, as defined in section 152 of the Internal Revenue Code, of the property owner who is under the age of 18 or is under the age of 24 and is a full-time student.

"Household size" means the number of persons in a household.

"Nonconforming residential second unit" means a residential unit approved as a second unit through the issuance of a conditional use permit or a second unit that meets the definition of a residential second unit and was occupied prior to the adoption of this ordinance without a conditional use permit. The planning director shall determine the status of such units in accordance with the provisions of this code.

"Primary residential unit" means the dwelling having the largest floor area located on any one lot or parcel within a single-family residential zoning district. Such primary residential unit is further defined as a building that provides complete, independent living facilities for one or more persons and permanent provisions for living, sleeping, eating, cooking, and sanitation.

"Rent-restricted second unit" means a residential second unit that is approved under a rent-restricted second unit permit. A rent-restricted second unit shall only be rented to a very low income household at an affordable rent level or occupied by an owner whose household qualifies as a very low income household.

"Rent" means to enter into an agreement whereby the occupant(s) of the residential second unit make any monetary payment or exchange of goods or services in consideration of occupancy of the second unit.

"Residential second unit affordable rent certification" means documentation and certification that a residential second unit is being rented to a very low income household at an affordable rent level or is exclusively being occupied by an owner whose household qualifies as a very low income household. Required information for documentation and certification shall include the rent charged, the utilities included in the monthly rent, the household size of the residential second unit, the names and ages of the residential second unit occupants, and the gross household income of the residential second unit household.

"Single family residential zoning district" means a district listed in this code that allows one single-family dwelling on a particular lot or parcel, otherwise known as an "R-1" zoning district.

"Very low income household" means a household with an annual gross household income of 50% or less than the Marin County median annual gross household income for that household size as last published by HCD. (Ord. 625 (part), 2011; Ord. 578 §8(part), 2003).

18.42.030 Applicability. The provisions of this chapter shall apply to all nonconforming residential second units and to all residential second units hereinafter approved or constructed. (Ord. 625 (part), 2011; Ord. 578 §8(part), 2003).

18.42.035 Residential Second Unit Permit Required. A residential second unit is allowed on any parcel in a single-family residential zoning district with a primary unit, subject to the issuance of a second unit permit. No more than one residential second unit per lot or parcel shall be permitted except as provided in Section 18.42.062(a). (Ord. 625 (part), 2011).

18.42.045 Permit Application and Procedures.

(a) Residential Second Unit Subject to Administrative Review.

(1) Application. An owner may apply for a residential second unit permit by submitting an application to the town planner on a form provided by the Town. The application form shall specify the information required from applicants. The town council may establish a fee for the application.

(2) Decision. The town planner shall consider the application without discretionary review, public notice, or a hearing. The town planner shall approve the application only if he or she determines that the application meets all of the development standards in Section18.42.050 and all of the design review standards in Section 18.42.060. The town planner shall deny the application if he or she determines that it does not meet all of such standards. The town planner's decision shall be in writing and shall state the reasons for approval or denial.

(3) Appeal. A person may appeal the decision of the town planner in conformance with Chapter 18.60.

(b) Residential Second Unit Subject to Town Council Review.

(1) General. The town council may grant exceptions to the development standards regulating the number of residential second units permitted on a lot or parcel and residential second unit height, location, size and floor area as set forth in Sections 18.42.062 and 18.42.065.

(2) Application – residential second unit permit. Where an owner seeks an exception to the development standards pursuant to Sections 18.42.062, the owner may apply for a residential second unit permit by submitting an application to the town planner on a form provided by the Town. The application form shall specify the information required from applicants. The town council may establish a fee for the application.

(3) Application – rent-restricted residential second unit permit. Where an owner seeks an exception to the floor area requirement as set forth in Section 18.42.050(e), the owner may apply for a rent-restricted residential second unit permit by submitting an application to the town planner on a form provided by the Town. The application form shall specify the information required from applicants. The town council may establish a fee for the application.

(4) Hearing. The town council shall hold a public hearing on the application.

(5) Decision. The town council shall approve or deny the application in accordance with the provisions of Section 18.42.062 or Section 18.42.065. The town council shall make its determination on the individual merit of each application without following or establishing precedent. The town council shall not approve an application unless it makes specific findings of fact as provided in Section 18.42.062 or Section 18.42.065. (Ord. 625 (part), 2011).

<u>18.42.050 Standards for residential second units.</u> (a) Parking. One parking space shall be provided for each residential second unit. The required parking space may be in tandem and within the setback areas but shall be screened from public view.

(b) Height and Location. Residential second units may be within the primary living unit or within a separate building upon the same lot as the primary living unit.

(1) If within the primary living unit, the second unit may be located in any habitable area. If added to the existing primary living unit, the location of the second unit shall not create an additional story above the first floor.

(2) Residential second units newly constructed as such or added to an accessory building shall be limited to a single story with a maximum building height of eighteen feet at any point when measured from either existing or finished grade.

(c) Setbacks. The setback requirements enumerated under Chapters 18.16, 18.32 and 18.39 of this code shall apply to residential second units.

(d) Lot Coverage. The lot coverage requirements enumerated under Chapters 18.16 and 18.32 of this code shall apply to residential second units.

(e) Floor Area. The floor area ratio requirements enumerated under Chapters 18.16, 18.32 and 18.39 of this code shall apply to residential second units.

(f) Maximum Size. Residential second units shall not exceed seven hundred square feet in floor area, excluding covered parking area.

(g) Residence Requirements. Approval of a residential second unit is conditioned upon the owner of record maintaining their residence upon the same parcel as that of the residential second unit.

(h) Health and Safety.

(1) Residential second units must, at a minimum, adhere to the fire safety standards in the Building and Fire Code and use measures such as fire preventative site design, landscaping and building materials, and other fire suppression techniques and resources as determined by the director of public safety.

(2) Residential second units proposed to be developed in areas of geologic hazard must not be endangered by, nor contribute to, hazardous conditions on the site or on adjoining properties.

(3) If the residential second unit proposed to be developed is in a Special Flood Hazard Area identified on the town Flood Insurance Rate Map and/or in an area known for flooding, the finished floor level of the improvements shall be above the base flood elevation.

(i) Building Permits and Codes. In addition to the provisions herein, residential second unit construction shall be subject to all applicable provisions and requirements of Title 15 of this code. (Ord. 625 (part), 2011; Ord. 589 §6, 2005: Ord. 578 §8(part), 2003).

18.42.060 Design review of residential second units. (a) Preservation of Existing Site Conditions. All areas disturbed by construction of a residential second unit must be finished to a natural appearing configuration and planted or seeded to prevent erosion.

(b) Relationship Between Structure and Site. All new residential second units constructed on sloping land shall be designed to relate to the natural land forms and step with the slope in order to minimize building mass, bulk, and height and to better integrate the structure with the site.

(c) Materials and Colors. Residential second unit construction shall be of the same exterior materials, color, and style as that of the primary living unit including roof, eaves, windows, doors, and other detailing.

(d) Exterior Lighting. Any lighting installed as part of a second residential unit project shall be shielded and directed downward. Lighting shall be low wattage and incandescent.

(e) Natural Environment. All secondary unit construction shall be subject to the tree protection provisions and regulations included in Chapter 12.24 of this code.

(f) Landscaping. Landscaping shall include such plantings as necessary to screen the appearance of structures as seen from off-site locations and to screen architectural and mechanical elements such as foundations, retaining walls, condensers, and transformers.

(g) Visual Focus. Where visibility exists from adjacent roadways, no residential second unit shall be located between the adjacent roadway and the primary living unit. (Ord. 578 §8(part), 2003).

18.42.062 Exceptions to standards for residential second units. At its discretion, the town council may grant exceptions to the number of residential second units permitted on a lot or parcel as set forth in Section 18.42.035, the development standards regulating residential second unit height and location as set forth in Section 18.42.050(b), and residential second unit size as set forth in Section 18.42.050(f).

(a) Exception to Number of Residential Second Units. The town council may grant an exception to the number of second units permitted on a lot or parcel to permit two second units on a parcel or lot, provided the parcel or lot is at least one acre in size.

(b) Exception to Height. The town council may grant a residential second unit height increase to two stories with a maximum building height of thirty feet at any point when measured from either existing or finished grade, whichever is lower.

(c) Exception to Location. The town council may grant an exception to the location standard to create a newly constructed residential second unit above an existing first floor.

(d) Exception to Size. The town council may grant a residential second unit size increase to 1,200 square feet.

(e) The town council may grant an exception enumerated above if the exception complies with the design review criteria and standards of Section 18.41.100 and the town council makes the following findings:

(1) The exception will not create a significant adverse impact on any adjacent property, the surrounding neighborhood, or the general public good.

(2) The lot and the arrangement of existing and proposed physical improvements on the lot can accommodate the exception without adversely affecting the views, privacy, or access to light and air of neighboring properties.

(3) Any modifications to site drainage shall be designed by a licensed engineer and shall result in no net increase to the rate or volume of peak runoff from the site compared to pre-project conditions. Any new mechanical pumps or equipment shall not create noise that is audible off site.

(4) The fire chief has confirmed that there is adequate water supply for firefighting purposes for the site, or that the project includes measures to provide adequate water supply for firefighting purposes. (Ord. 625 (part), 2011).

18.42.065 Rent-restricted second units. At its discretion, the town council may grant an exception to the floor area requirement as set forth in Section 18.42.050(e) if the owner agrees to occupy or rent a newly constructed residential second unit as a rent-restricted second unit, if the residential second unit is not located on a hillside area as defined in Section 18.39.020(a), and if the town council makes specific findings of fact as set forth in this section.

(a) Exception to Floor Area. The town council may grant a floor area bonus of up to 500 square feet if the newly constructed residential second unit is to be rent-restricted for a very low income household. Any floor area exception shall only apply to the area of a new second unit and shall not be granted to allow an addition to the primary residence or traded off for an addition to the primary residence in the future.

(b) The town council may grant a floor area exception if the exception complies with the design review criteria and standards of Section 18.41.100 and the town council makes the following findings:

(1) The exception will not create a significant adverse impact on any adjacent property, the surrounding neighborhood, or the general public good.

(2) The lot and the arrangement of existing and proposed physical improvements on the lot can accommodate the exception without adversely affecting the views, privacy, or access to light and air of neighboring properties.

(3) Any modifications to site drainage shall be designed by a licensed engineer and shall result in no net increase to the rate or volume of peak runoff from the site compared to pre-project conditions. Any new mechanical pumps or equipment shall not create noise that is audible off site.

(4) The fire chief has confirmed that there is adequate water supply for firefighting purposes for the site, or that the project includes measures to provide adequate water

supply for firefighting purposes.

(c) Declaration of Rent Restrictions. The owner shall submit a signed Declaration of Rent Restrictions, to be recorded before or concurrently with, and as a condition of, issuance of the rent-restricted second unit permit, reflecting the rent restriction. The Town shall provide the form of such Declaration.

(d) Affordable Rent Certification. An owner who has executed a Declaration shall submit to the Town a Residential Second Unit Affordable Rent Certification on an annual basis, effective each December 31 and as part of the annual Town business license application and renewal, and upon any change in occupancy of the residential second unit, specifying whether or not the residential second unit is being occupied, the rent charged, the utilities included in the cost of rent, the household size of the residential second unit, the names and ages of the residential second unit occupants, the gross household income of the residential second unit household, and other information as determined appropriate by the Town. The Town shall provide the form of the Certification to be signed under penalty of perjury by both the owner and the tenant, if any.

(e) Termination of Rent-Restricted Second Unit Permit. At its discretion, the town council may grant an owner's request to terminate a rent-restricted second unit permit. The town council shall consider the length of time such permit has been in force, the conditions of approval, the exceptions granted for the permit, and the impact on the town's affordable housing supply. In no case shall such permit be terminated prior to 20 years from the date of town council approval under this section. As a condition of termination, the town council shall require the owner to make modifications to the property to comply with current building code requirements and to comply with the planning code requirements in effect at the time the exception(s) was granted or obtain a variance from such requirements. (Ord. 625 (part), 2011).

18.42.070 Administration and Enforcement. (a) Any exception request that does not comply with the prescribed limitations set forth in this chapter shall require a variance, pursuant to Chapter 18.48.

(b) Nonconforming residential second units.

(1) Nonconforming residential second units previously granted a conditional use permit may continue in use subject to the conditions of their original approval and the provisions of Chapter 18.44 of this code.

(2) On or before June 1, 2012, the owner of each non-conforming residential second unit not previously granted a conditional use permit shall make application to the town planner for establishment of a conforming residential second unit subject to all requirements of this chapter. During the amnesty period, planning and building applications for such residential second unit permits shall not be subject to penalties and inspection fees as provided in the Ross Municipal Code and by resolution of the town council for work without a permit, but instead shall be subject to only the standard application and permit fees.

(3) It is declared that any non-conforming residential second unit not previously granted a conditional use permit and not made conforming pursuant to subsection (a) (2) of this section shall constitute a public nuisance, and such nuisance may be abated as provided by law.

(c) Inactive applications. Consistent with state law, the town planner may administratively deny without prejudice any application which remains incomplete or inactive for a period of greater than ninety days, or is continued at the applicant's request for more than sixty days.

(d) Violation. An illegal residential second unit is a residential second unit which is not an approved residential second unit or is in violation of the Declaration of Deed Restrictions or the Declaration of Rent Restrictions. The Town Manager is authorized to pursue any remedies

provided by law against the owner of an illegal residential second unit or a residential second unit not maintained in conformance with this Chapter, including:

(1) General. Those remedies set forth in Chapters 9.04 and 18.64 of this code;

(2) Costs. In any civil enforcement action, administrative or judicial, the Town is entitled to recover its attorneys' fees and costs from an owner who is determined to have an illegal residential second unit;

(3) Revocation of the Residential Second Unit Permit;

(4) Citations issued pursuant to the Administrative Citation Procedure authorized by California Government Code, Section 53069.4;

(5) Deed Restriction/Contract. Any liquidated damages or stipulated penalties authorized under any deed restriction or contract executed by the owner as a condition of the issuance of the residential second unit permit.

(e) Enforcement. Failure to comply in any way with the provisions of this chapter, approved plans, or conditions for application approval constitutes grounds for the town to immediately stop work related to the noncompliance until the matter is resolved. Such violation will be subject to the enforcement penalties and procedures of Chapters 9.04 and 18.64 of this code. (Ord. 641 (part), 2013; Ord. 625 (part), 2011; Ord. 578 §8(part), 2003).

Regional Housing Need Plan for the San Francisco Bay Area: 2014-2022

I. About the Regional Housing Need Allocation

Since 1980, the State of California has required each jurisdiction to plan for its share of the state's housing need for people of all income levels.[1] The Regional Housing Need Allocation (RHNA) is the process by which each community is assigned its share of the housing need for an eight-year period. This allocation consists of two steps. First, The California Department of Housing and Community Development (HCD) determines the total housing need for each region in the state. Second, as the Council of Governments for the San Francisco Bay Area, it is the responsibility of the Association of Bay Area Governments (ABAG) to distribute this need to local governments.

The RHNA identifies each jurisdiction's responsibility for planning for housing, and is divided into four income categories that encompass all levels of housing affordability. Once it receives its RHNA, each local government must update the Housing Element of its General Plan to show how it plans to meet the housing needs in its community. For Bay Area local jurisdictions' Housing Elements, this RHNA covers the planning period from January 31, 2015 to January 31, 2023, and Housing Element updates are required to be completed, with a finding of compliance by HCD, by January 31, 2015.

The Regional Housing Need Determination

In consultation with ABAG, HCD determined that the Bay Area must plan for 187,990 new housing units from 2014-2022 (Appendix A). This determination is based on population projections produced by the California Department of Finance (DOF), which also took into account the uncertainty regarding the economy and regional housing markets. For this cycle, HCD made an adjustment to account for abnormally high vacancies and unique market conditions due to prolonged recessionary conditions, high unemployment, and unprecedented foreclosures. As a result, the Regional Housing Need Determination (RHND) from HCD for this RHNA cycle is lower than the RHND for 2007-2014. The RHND for the region, by income, is as follows:

2014 – 2022 RHNA by Income	Percent	Units (Rounded)
Very Low Up to 50 Percent of Area Median Income[2]	24.8%	46,680
Low Between 51 and 80 Percent of Area Median Income	15.4%	28,940
Moderate Between 81 and 120 Percent of Area Median Income	17.8%	33,420
Above Moderate Above 120 Percent of Area Median Income	42.0%	78,950
	100.0%	**187,990**

II. The Relationship of RHNA and the Sustainable Communities Strategy

As a result of the passage of Senate Bill 375 (Chapter, Statutes of 2008), the RHNA must be consistent with the development pattern included in the Sustainable Communities Strategy (SCS) of the Regional Transportation Plan (RTP). SB 375 requires that each region plan for future housing needs and complementary land uses, which in turn must be supported by a transportation investment strategy,

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[1] California Government Code §65580.

[2] HCD sets income limits for each of these income categories for every county in California. More information is available at http://www.hcd.ca.gov/hpd/hrc/rep/state/incNote.html.

with a goal of reducing greenhouse gas (GHG) emissions from cars and light-duty trucks. ABAG and the Metropolitan Transportation Commission (MTC) have collaborated to develop Plan Bay Area to meet the requirements of SB 375.[3]

In the Bay Area, the SCS and the RHNA methodology are mutually reinforcing and were developed together to meet the overlapping objectives of SB 375 and Housing Element Law. These objectives include increasing the supply, diversity and affordability of housing; promoting infill development and a more efficient land use pattern; promoting an improved intraregional relationship between jobs and housing; protecting environmental resources; and promoting socioeconomic equity.

The Bay Area's sustainable growth framework is built around the Priority Development Areas (PDAs) and Priority Conservation Areas (PCAs). PDAs are existing neighborhoods near transit nominated by local jurisdictions as appropriate places to concentrate future growth. There are nearly 200 adopted PDAs (including subareas) in more than 70 of the 109 jurisdictions in the region. The PDAs represent many types of places, from regional centers to neighborhood commercial nodes. They exist in all kinds of communities, from high-income suburban areas to city cores in need of reinvestment.

Priority Conservation Areas (PCAs) comprise over 100 regionally significant open spaces for which there exists broad consensus for long-term protection, but which face nearer-term development pressures. They ensure that Plan Bay Area considers farmland and resource areas in keeping with SB 375. The PCAs and PDAs complement one another: promoting compact development within PDAs relieves some of the development pressure on the region's open space and agricultural lands.

Addressing these different mandates requires achieving a balance between the more focused growth pattern necessary to achieve GHG emission reductions and the need to ensure that every jurisdiction contributes its "fair share" toward meeting the region's housing need. RHNA must also achieve a balance between directing affordable housing to locations where it is needed by existing residents, including rural and suburban areas, and avoiding the over-concentration of poverty. The SCS and the RHNA methodology (both described in more detail below) work in concert to direct housing growth to PDAs and non-PDA locations throughout the region in order to balance these goals and mandates in a way that promotes inclusive housing patterns throughout the region.

Beyond the requirements specified in Housing Element Law and SB 375, the comprehensive Plan Bay Area effort will support RHNA through targeted transportation investments funded under the One Bay Area Grant (OBAG).[4] The funding criteria for OBAG take into account local jurisdictions' past housing production and the 2014-2022 RHNA, for both total units and affordable units. The OBAG program also emphasizes the importance of planning for housing by requiring that a jurisdiction has a Housing Element certified by HCD to be eligible for funding.

Although each PDA has a unique set of attributes and challenges, the goal of the SCS is that all will become complete communities that increase housing and transportation choices. The plan envisions these areas as neighborhoods where transit, jobs, schools, services, and recreation are conveniently located near people's homes. The OBAG program provides targeted investments to PDAs to help them achieve the goal of being a complete community. Making investments in neighborhoods that need them will benefit the residents living in these communities and help create more neighborhoods of opportunity throughout the region.

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[3] More information about Plan Bay Area is available at http://www.onebayarea.org/regional-initiatives/plan-bay-area.html.

[4] Details about OBAG are available at http://www.onebayarea.org/funding-and-grants.html.

In addition, it is our expectation that tying the allocation of regional transportation dollars to housing and affordable housing production goals will result in the construction of more housing to meet the region's housing need compared to previous RHNA cycles. The creation of a PDA program with funding incentives tied to housing provides a mechanism through which the region can reward those jurisdictions that are planning for and producing housing. Many jurisdictions that previously did not plan for new housing have established PDAs, undergone specific planning processes, and created new zones for residential development.

The SCS land use distribution is an initial input into the RHNA methodology.[5] For the period between 2014 and 2022, the SCS accommodates RHNA by allocating the pre-determined regional housing need from HCD to local jurisdictions consistent with the land use criteria specified in the SCS. The SCS uses the RHNA as the housing growth pattern for the period between 2014 and 2022. Through this process, the region's housing, transportation, and land use planning are aligned.

III. The SCS Housing Distribution

Although the PDAs are a significant component of the growth pattern in the SCS, the housing distribution incorporates multiple factors to assign growth to PDAs and non-PDA areas. The ABAG Executive Board adopted a policy in July 2011 to support equitable and sustainable development by "maximizing the regional transit network and reducing GHG emissions by providing convenient access to employment for people of all incomes." This is accomplished by distributing total housing growth numbers to: 1) job-rich cities that have PDAs or additional areas that are PDA-like; 2) areas connected to the existing transit infrastructure; and 3) areas that lack sufficient affordable housing to accommodate low-income commuters.[6]

The housing distribution in the SCS starts with local jurisdictions' plans for growth and then makes adjustments based on factors related to sustainability, equity, and the economy. Housing growth is directed to areas throughout the region (including PDAs and non-PDA areas) with high levels of transit service, low vehicle miles traveled (which is highly correlated with GHG emissions), high employment in 2040, a high number of low-income workers commuting from other places, and high housing values. These factors aim to expand housing and transportation options; increase access to jobs, particularly for low-income workers; and promote housing growth in places with high-quality services, such as parks, and schools. To meet the Bay Area's adopted performance targets for the SCS, additional housing is directed to key job centers and locations along the core transit network, including PDAs and non-PDA areas.[7]

Finally, the housing distribution in the SCS was adjusted to ensure a fair share distribution between large cities and medium cities with high job growth and transit access. Analysis of the concentrated growth pattern in the SCS indicated that some core cities require investments in transit infrastructure and utilities and improvements in public services before they can accommodate a high level of housing production. In recognition of these challenges, along with the expected pace of recovery from the

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[5] The Jobs-Housing Connection Strategy (JHCS), adopted on May 16, 2012, was used as the SCS input into the RHNA. The Final SCS uses the same housing distribution methodology, which is described in more detail in the *Forecast of Jobs, Population, and Housing* (July 2013) at http://www.onebayarea.org/regional-initiatives/plan-bay-area/draft-plan-bay-area/supplementary-reports.html.

[6] ABAG Executive Board Meeting Summary Minutes, No. 381, p. 9. July 21, 2011. http://www.abag.ca.gov/abag/events/agendas/e091511a-Item%2006.A..pdf

[7] This affected the following cities: Millbrae, Oakland, Pleasanton, Redwood City, San Francisco, San Jose, San Mateo, San Ramon, Santa Clara, South San Francisco, Sunnyvale, and Walnut Creek. Forecast of Jobs, Population, and Housing, July 2013, p. 37.

current housing and fiscal crisis, ABAG shifted a small portion of housing growth in Oakland, San Jose, Newark, and the North Bay to a later period in the SCS plan horizon. The growth in these locations is expected to occur after 2022, so ABAG shifted 3,500 housing units (1.5 percent of the regional total) from these locations to the balance of the region during the RHNA period. These adjustments do not change the 2010-2040 long-term growth totals in the SCS.

IV. The RHNA Methodology

The RHNA methodology consists of two major steps: determining a jurisdiction's total RHNA and identifying the share of the jurisdiction's total RHNA in each income category. The following describes the components of the adopted RHNA Methodology.[8]

Determining a Jurisdiction's Total RHNA

Sustainability Component

The Sustainability Component advances the goals of SB 375 and expands upon the inclusion of compact growth principles that began with the 2007-2014 RHNA methodology. Following the land use distribution specified in the SCS which allocates new housing into PDAs and non-PDA areas, 70 percent of the region's housing need (as determined by HCD) is allocated based on growth in PDAs and the remaining 30 percent is allocated based on growth in non-PDA locations.

Using the PDA framework from the SCS in the RHNA methodology promotes growth in sustainable locations and is a key to ensuring consistency between the two planning documents. Directing growth to infill locations is a key component of protecting agricultural and natural resources. This methodology also recognizes the multiple benefits for local communities and the region as a whole of encouraging housing, particularly affordable housing, in the neighborhoods near transit that local communities have identified as priorities for development and investment to create complete communities.

ABAG received some comments regarding concerns about the potential that the RHNA methodology would increase concentrations of poverty, perpetuate patterns of segregation, and limit housing opportunities for low-income households. ABAG's responses to these concerns are available at http://www.abag.ca.gov/planning/housingneeds/resources-new.html.

Fair Share Component

It is important that jurisdictions with PDAs are not asked to shoulder too much of the responsibility for meeting the region's housing need. PDAs are not the only areas in which housing choices are needed, and the RHNA methodology must ensure that all jurisdictions share responsibility for meeting the regional need for housing. Focusing only on PDAs could mean that jurisdictions that were unable or unwilling to designate any PDAs would not be allocated their "fair share" of the regional housing obligation.

As noted above, the housing distribution in the SCS directs housing growth to non-PDA locations in the region based on factors that aim to expand housing and transportation options; increase access to jobs, particularly for low-income workers; and promote housing growth in places with high-quality services, such as parks, and schools. The RHNA methodology builds upon this distribution with the inclusion of an explicit "fair share" component that achieves the requirement that all cities and counties in California work to provide a fair share proportion of the region's total housing need for households at all income levels. The Fair Share Component allocates housing need to expand access to communities with good transit access and employment opportunities.

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[8] A detailed explanation of how each jurisdiction's allocation was derived is available at http://www.abag.ca.gov/planning/housingneeds/resources-new.html.

Appendix C: FINAL REGIONAL HOUSING NEED ALLOCATION (2014-2022)

	Very Low 0-50%	Low 51-80%	Moderate 81-120%	Above Moderate 120%+	Total
Marin County					
Belvedere	4	3	4	5	16
Corte Madera	22	13	13	24	72
Fairfax	16	11	11	23	61
Larkspur	40	20	21	51	132
Mill Valley	41	24	26	38	129
Novato	111	65	72	167	415
* Ross	6	4	4	4	18
San Anselmo	33	17	19	37	106
San Rafael	240	148	181	438	1,007
Sausalito	26	14	16	23	79
Tiburon	24	16	19	19	78
Marin County Unincorporated	55	32	37	61	185
	618	**367**	**423**	**890**	**2,298**
Napa County *					
American Canyon	116	54	58	164	392
Calistoga	6	2	4	15	27
Napa	185	106	141	403	835
St. Helena	8	5	5	13	31
Yountville	4	2	3	8	17
Napa County Unincorporated	51	30	32	67	180
	370	**199**	**243**	**670**	**1,482**
San Francisco County					
San Francisco	6,234	4,639	5,460	12,536	28,869
	6,234	**4,639**	**5,460**	**12,536**	**28,869**

* The jurisdictions in Napa, San Mateo, and Solano counties each chose to form a subregion to carry out the RHNA process. These numbers reflect the final allocations adopted by each of the three subregions.

Adopted by the ABAG Executive Board on July 18, 2013.